

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
GEORGI MARTE,

Plaintiff,

- against -

THE CITY OF NEW YORK and POLICE OFFICER
EMMANUEL JAIME,

Plaintiff designates
Bronx County
as the place of trial

The basis of the venue:
Situs of Incident

Defendants.
-----X

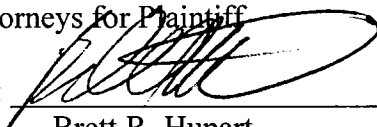
SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 22, 2018

Yours, etc.,
KRIEGER, WILANSKY & HUPART, ESQS.
Attorneys for Plaintiff

By: 
Brett R. Hupart
5602 Broadway
Bronx, New York 10463
(718) 432-0500

To: THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER EMMANUEL JAIME
41st Precinct
1035 Longwood Ave
Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
GEORGI MARTE,

VERIFIED COMPLAINT

Plaintiff,

- against -

THE CITY OF NEW YORK and POLICE OFFICER
EMMANUEL JAIME,

Defendants.
-----X

Plaintiff, by his attorneys, KRIEGER, WILANSKY & HUPART, ESQS., complaining of
the defendants, respectfully alleges upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That the subject arrest, incarceration and prosecution occurred in the County of Bronx, City and State of New York.
2. At all times herein stated, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, its agents, servants and employees operated, maintained and controlled a police force known as THE NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof.
4. At all times hereinafter mentioned, defendant, POLICE OFFICER EMMANUEL JAIME, was, and still is, an employee of defendant, THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, defendant, POLICE OFFICER EMMANUEL JAIME, was acting for, upon, in the course of, and in the furtherance of the interests of defendant, THE CITY OF NEW YORK, and within the scope of his employment.

6. That notice of plaintiff's claim and intention to sue thereon and the dates when and the places at which the alleged injuries and damages were sustained, was duly served and filed by the plaintiff with defendant, THE CITY OF NEW YORK, on the 21st day of September, 2017, by serving the said Notice of Claim on the Comptroller's Office of the City of New York, within ninety days of when the cause of action had accrued and before the commencement of this action; that the defendants have failed and refused to pay or adjust the said claim; that more than thirty days have elapsed since the service of the said claim; and that this action was commenced within one year after the cause of action accrued.

7. That an amended notice of plaintiff's claim, that added a malicious prosecution cause of action, was filed by the plaintiff with defendant, THE CITY OF NEW YORK, on the 26th day of December, 2017, after all charges were dismissed against plaintiff, by serving the said Amended Notice of Claim on the Comptroller's Office of the City of New York, within ninety days of when that cause of action had accrued and before the commencement of this action; that the defendants have failed and refused to pay or adjust the said claim; that more than thirty days have elapsed since the service of that said Amended claim; and that this action was commenced within one year after that cause of action accrued.

8. That on April 20, 2018, upon the demand of the defendant, THE CITY OF NEW YORK, plaintiff was produced for the purpose of holding a 50-h hearing in this matter and defendant conducted such a 50-h hearing on that date.

9. All conditions precedent to suit have been satisfied.

10. That on or about June 26, 2017, plaintiff, GEORGI MARTE, was falsely arrested, detained and imprisoned by defendants, in the County of Bronx, City and State of New York.

11. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants, in the failure to properly investigate the underlying events; failure to heed exculpatory evidence; failure to follow-up on leads; failure to investigate properly; in improper hiring; negligent deployment; negligent supervision; negligent training; retaining incompetent personnel; carelessly, recklessly and negligently hired and retained incompetent personnel; failing to follow Police Department rules, regulations and procedures; failure to control their agents, servants and/or employees; and arresting plaintiff without cause or justification.

12. That as a result of the aforesaid negligent and intentional acts of the defendants, the plaintiff, GEORGI MARTE, was assaulted, battered, humiliated, deprived of his liberty and was subjected to scorn and ridicule; suffered shock and embarrassment; deprived of his civil liberty; detained; falsely arrested; caused to be degraded in the esteem of the community, his friends and his peers; sustained loss of liberty, emotional harm, grievous injury to various parts of his body, embarrassment, and injury to reputation; that he suffered pecuniary loss; that plaintiff, GEORGI MARTE, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, GEORGI MARTE, has been rendered unable to attend to his usual activities as he had theretofore done, and his injuries are of a permanent, protracted and disabling nature.

13. That in consequence of the foregoing, the plaintiff, GEORGI MARTE, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A SECOND CAUSE OF ACTION

14. The plaintiff, GEORGI MARTE, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "13" as though fully set forth herein at length.

15. That from his arrest on June 26, 2017, up to, and including, on or about June 27, 2017, the plaintiff, GEORGI MARTE, was falsely imprisoned.

16. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants.

17. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants, in the failure to properly investigate the underlying events; failure to heed exculpatory evidence; failure to follow-up on leads; failure to investigate properly; in improper hiring; negligent deployment; negligent supervision; negligent training; retaining incompetent personnel; carelessly, recklessly and negligently hired and retained incompetent personnel; failing to follow Police Department rules, regulations and procedures; failure to control their agents, servants and/or employees; and arresting plaintiff without cause or justification.

18. That as a result of the aforesaid negligent and intentional acts of the defendants, the plaintiff, GEORGI MARTE, was assaulted, battered, humiliated, deprived of his liberty and was subjected to scorn and ridicule; suffered shock and embarrassment; deprived of his civil liberty; detained; falsely arrested; caused to be degraded in the esteem of the community, his friends and his peers; sustained loss of liberty, emotional harm, grievous injury to various parts of his body, embarrassment, and injury to reputation; that he suffered pecuniary loss; that plaintiff, GEORGI MARTE, has suffered and will continue to suffer great pain and anguish of

body and mind; that plaintiff, GEORGI MARTE, has been rendered unable to attend to his usual activities as he had theretofore done, and his injuries are of a permanent, protracted and disabling nature.

19. That in consequence of the foregoing, the plaintiff, GEORGI MARTE, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A THIRD CAUSE OF ACTION

20. The plaintiff, GEORGI MARTE, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "19" as though fully set forth herein at length.

21. That from June 26, 2017 through, on or about, June 27, 2017, the defendants, acting jointly and severally, caused the plaintiff, GEORGI MARTE to be, maliciously, unlawfully, wrongfully and without any order, warrant or process of any court, and without any legal right, falsely arrested, falsely imprisoned, detained, handcuffed, incarcerated, restrained and deprived of his liberty.

22. That as a consequence of the wrongful acts of the defendants, the plaintiff, GEORGI MARTE, suffered damage in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A FOURTH CAUSE OF ACTION

23. The plaintiff, GEORGI MARTE, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "22" as though fully set forth herein at length.

24. That the aforesaid defendants falsely, maliciously and without probable cause and provocation charged the plaintiff, GEORGI MARTE, with various crimes, and caused a criminal proceeding to be commenced against him.

25. The commencement and prosecution of the criminal proceeding was malicious and began in malice and without probable cause by said defendants, acting jointly and severally, knowing that the proceeding should not have taken place.

26. That all charges and criminal proceedings were terminated in favor of the plaintiff, GEORGI MARTE.

27. That the criminal case against plaintiff, GEORGI MARTE was dismissed on or about October 3, 2017.

28. The said occurrence and the injuries resulting therefrom was caused wholly and solely through and by the negligent and intentional acts of the defendants, in the failure to properly investigate the underlying events; failure to heed exculpatory evidence; failure to investigate properly; in improper hiring; negligent deployment; negligent supervision; negligent training; retaining incompetent personnel; carelessly, recklessly and negligently hired and retained incompetent personnel; failing to follow Police Department rules, regulations and procedures; failure to control their agents, servants and/or employees; and prosecuting plaintiff without cause or justification.

29. That as a result of the aforesaid negligent and intentional acts of the defendants, the plaintiff, GEORGI MARTE, was assaulted, battered, humiliated, deprived of his liberty and was subjected to scorn and ridicule; suffered shock and embarrassment; deprived of his civil liberty; detained; maliciously prosecuted; caused to be degraded in the esteem of the community, his friends and his peers; sustained loss of liberty, emotional harm, grievous injury to various

parts of his body, embarrassment, and injury to reputation; that he suffered pecuniary loss; that plaintiff, GEORGI MARTE, has suffered and will continue to suffer great pain and anguish of body and mind; that plaintiff, GEORGI MARTE, has been rendered unable to attend to his usual activities as he had theretofore done; his injuries are of a permanent, protracted and disabling nature; and he was further caused to expend monies for his criminal defense.

30. That in consequence of the foregoing, the plaintiff, GEORGI MARTE, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A FIFTH CAUSE OF ACTION

31. The plaintiff, GEORGI MARTE, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "30" as though fully set forth herein at length.

32. That on the aforesaid dates the defendants, acting jointly and severally, assaulted, battered, humiliated, unlawfully had arrested, unlawfully detained, falsely incarcerated, maliciously prosecuted the plaintiff, GEORGI MARTE, and deprived him of his civil rights.

33. That the defendants, and that of their agents, servants and employees, violated the civil rights of plaintiff, GEORGI MARTE, guaranteed by the Due Process Clauses of the 5th and 14th amendments to the Constitution of the United States, the Equal Protection Clause, 42 U.S.C. 1983 and 1988, and the Constitution of the State of New York.

34. That the intentional and negligent actions of the defendants, each of them, their agents, servants and/or employees, occurred from June 26, 2017, the date of arrest, through and continuing until the termination of the last of criminal charges on or about October 3, 2017.

35. That by reason of the foregoing, the plaintiff, GEORGI MARTE, was caused to be severely injured and suffer other damages.

36. That in consequence of the foregoing, the plaintiff, GEORGI MARTE, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

AS AND FOR A SIXTH CAUSE OF ACTION

37. The plaintiff, GEORGI MARTE, repeats, reiterates and realleges each and every allegation of the complaint contained in paragraphs marked and numbered "1" through "36" as though fully set forth herein at length.

38. The defendants wholly failed to take any or sufficient steps whatsoever to protect plaintiff, GEORGI MARTE, from their employees, in that it carelessly, recklessly and negligently hired and retained incompetent personnel.

39. That the defendants, their agents, servants and employees were negligent, careless and reckless, in improper hiring, negligent deployment, negligent supervision, negligent training, retaining incompetent personnel, failing to follow Police Department rules, regulations and procedures and failure to control their agents, servants and/or employees.

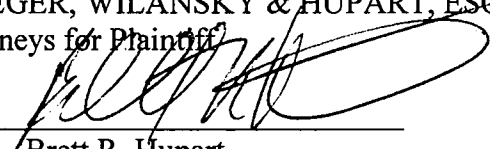
40. That in consequence of the foregoing, the plaintiff, GEORGI MARTE, was damaged in an amount in excess of all lower courts that would otherwise have jurisdiction herein.

WHEREFORE, the plaintiff demands judgment against the defendants on his FIRST, SECOND, THIRD, FOURTH, FIFTH, and SIXTH Causes of Action, each in an amount in

excess of all lower courts that would otherwise have jurisdiction herein, together with the costs and disbursements of this action.

Dated: Bronx, New York
June 22, 2018

Yours, etc.,
KRIEGER, WILANSKY & HUPART, ESQS.
Attorneys for Plaintiff

By: 

Brett R. Hupart

5602 Broadway
Bronx, New York 10463
(718) 432-0500

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK)

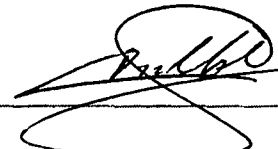
COUNTY OF Bronx) ss:Georgi Mante , being duly sworn deposes and says:

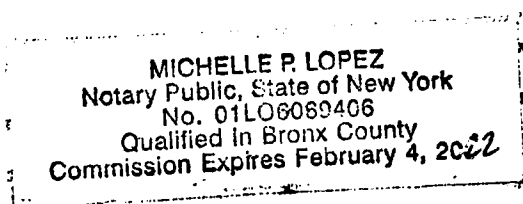
I am a Plaintiff in the action herein: I have read the foregoing

Summons & Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: Bronx, New York

June 22 , 2018

X 

Subscribed and sworn to before me
this 22nd day of June , 2018
NOTARY PUBLIC

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

GEORGI MARTE,

Plaintiff,

-against-

**THE CITY OF NEW YORK and POLICE OFFICER
EMMANUEL JAIME,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

KRIEGER, WILANSKY & HUPART, ESQS.

Attorneys at Law
Attorneys for Plaintiff
5602 Broadway
Bronx, New York 10463
(718) 432 – 0500

To:

Dated:

Attorneys for

PLEASE TAKE NOTICE

Notice
of
Entry

that the within is a true copy of
within named Court on

entered in the office of the clerk of the

Notice of
Settleme
nt

That an Order of which the within is a true copy will be presented for settlement to the
Hon. one of the judges of the within named Court, at on , at o'clock

Dated: Bronx, New York

KRIEGER, WILANSKY & HUPART, ESQS.
Attorneys for Plaintiff
5602 Broadway-2nd Floor
Bronx, New York 10463

TO: